

23SMCV04492 23SMCV04492

County: los-angeles

Division: Civil Law and Motion

Department: O

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Case Number: 23SMCV04492 Hearing Date: August 6, 2026 Dept: O

TENTATIVE RULING

August 6, 2026

23SMCV04492 (Van Vu v. Dar)

RELEVANT BACKGROUND

On September 21, 2023,
plaintiff Hoang Van Vu (Plaintiff) filed the complaint against defendant
Murtaza Iqbal Dar (Defendant).

On June 6, 2025, the Court
granted Plaintiff's Motion to Strike the Answer of Defendant and to Impose
Terminating Sanctions. The Court summarized Defendant's conduct in the Order
Granting Plaintiff's Motion to Strike Answer of Defendant Murtaza Iqbal Dar and
to Impose Terminating Sanctions as follows:

Defendant

repeated his claim that he has sent documents to the Court, complained that he
had 'wasted two hours' on his day off because he appeared for the hearing
remotely at 8:30 am. Regarding the Plaintiff's motion and the Court's OSC,
Defendant did not file an opposition or response. Defendant simply repeated his
argument that he should not have to respond to discovery or appear in Court
because 'thirteen months ago he offered to pay the plaintiff \$10,000 a month
and that should have resolved the case, but the Plaintiff's counsel never
responded.

(6/6/25 Minute Order, Ex. J).

On December 4, 2025, the
Judgment was entered.

INSTANT MOTION

On March 12, 2026, Defendant filed the instant
motion to set aside the Judgment. Plaintiff filed an opposition, and Defendant
filed a reply.

DISCUSSION

“The court may, upon any terms as
may be just, relieve a party or the party's legal representative from a
judgment, dismissal, order, or other proceeding taken against the party through
the party's mistake, inadvertence, surprise, or excusable neglect. Application
for this relief shall be accompanied by a copy of the answer or other pleading
proposed to be filed therein, otherwise the application shall not be granted, and
shall be made within a reasonable time, in no case exceeding six months, after
the judgment, dismissal, order, or proceeding was taken.” (Code Civ. Proc. §
473, subd. (b).)

Here, Defendant seeks an order
vacating the Judgment entered in this action on December 4, 2025. Defendant
contends that the Judgment should be set aside because it “arose from
procedural misunderstanding by a self-represented litigant rather than
intentional refusal to participate in the litigation process.” (Mtn., 3:5-6).

The Court finds no basis to set
aside/vacate the Judgment. The Court is not persuaded by Defendant's argument
that there was a “procedural misunderstanding of discovery procedures” because
Defendant was self-represented. (See *Burnete v. La Casa Dana Apartments*
(2007) 148 Cal.App.4th 1262, 1267-1271 [Parties are not entitled to relief
under Code of Civil Procedure section 473, merely based upon being a
self-represented litigant].) Defendant's conduct in repeatedly failing to
fulfill his discovery obligations or comply with the Court's orders does not
constitute mistake, inadvertence, surprise, or excusable neglect within the
meaning of Code of Civil Procedure section 473(b).

Accordingly, Defendant's motion to
set aside/vacate is DENIED.